Amy Coney Barrett

Associate justice Amy Coney Barrett.**Amy Coney Barrett** (born January 28, 1972, New Orleans, Louisiana) is an associate justice of the Supreme Court of the United States from 2020. She is the fifth woman to serve on the Supreme Court.

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Education and early career

Amy Coney was the first of eight children of Linda Coney (née Vath), a high-school French teacher, and Michael Coney, an attorney. Her family was devoutly Roman Catholic, belonging to the People of Praise, an organization devoted to supporting closely knit Christian communities. Barrett attended Catholic schools and graduated from the all-girls St. Mary's Dominican High School.

Barrett earned her undergraduate degree (magna cum laude) in 1994 from Rhodes College in Memphis, Tennessee. She subsequently attended Notre Dame Law School in South Bend, Indiana, earning a J.D., or juris doctor (summa cum laude), degree in 1997.

Following her graduation from law school, Barrett completed two prestigious federal clerkships, positions typically filled for one year by top graduates from highly regarded law schools. Barrett first clerked for Judge Laurence Silberman of the U.S. Circuit Court of Appeals for the District of Columbia Circuit. She then clerked for Supreme Court Justice Antonin Scalia, an influential conservative jurist and a prominent advocate of the method of constitutional interpretation known as originalism. Scalia was an important influence on Barrett: upon accepting her nomination to the Supreme Court, Barrett would say of Scalia, "His judicial philosophy is mine, too."

After clerking, Barrett remained in Washington, D.C., practicing as an attorney with the law firm of Miller, Cassidy, Larroca, & Lewin, which became a part of the international firm Baker Botts in 2001. While at Miller, Barrett worked for the

presidential campaign of George W. Bush in its litigation in *Bush* v. *Gore* (2000), the landmark Supreme Court case that ultimately determined the outcome of the 2000 election by ending a legally mandated recount of votes in Florida, resulting in Bush being declared the winner of the state's pivotal electoral college votes. Barrett is one of three Supreme Court justices—along with Chief Justice John G. Roberts, Jr. and Associate Justice Brett Kavanaugh—to have participated in the election litigation on behalf of Bush.

Barrett left private practice in 2001 to begin a career in legal academia. After a yearlong stint as a fellow at the George Washington University Law School, she returned to Notre Dame Law School as a professor of law. Her teaching and scholarship focused on constitutional law, constitutional theory, statutory interpretation, civil procedure, evidence, and the federal courts. She frequently gave public lectures illuminating various aspects of constitutional law and appellate practice. A regular topic of her talks was originalism, the method of constitutional interpretation favored by conservatives, whereby semantic indeterminacies in the text are resolved by looking to the original public meanings of the words in question. Regular venues for her talks were meetings of the Federalist Society, the principal organization of the contemporary conservative legal movement. Barrett, a member of the society, was a rising star in that movement, which has as one of its main goals the filling of federal judgeships with accomplished conservative jurists.

Federal judgeship

In May 2017 Barrett was nominated by Republican Pres. Donald Trump to fill a seat on the U.S. Circuit Court of Appeals for the Seventh Circuit that had been vacated by the retirement of John Daniel Tinder during Pres. Barack Obama's tenure but that Senate Republicans had held open by refusing to confirm Obama's nominee. During Barrett's confirmation hearings, Democratic Sen. Dianne Feinstein said to Barrett, "The dogma lives loudly within you," implying that Barrett's legal philosophy was inordinately influenced by her religious beliefs. Barrett was confirmed by the Senate on October 31, 2017, by a vote of 55 to 43 (two senators did not vote). The vote was largely along partisan lines, with only three Democratic

senators voting in favor of Barrett's confirmation, along with all 52 Republican senators.

As a circuit court judge, Barrett exhibited conservative voting patterns. Writing for the court in *Grussgott* v. *Milwaukee Jewish Day School* (2018), she recognized a religious liberty exception to the Americans with Disabilities Act (1990) and on that ground barred a teacher's discrimination lawsuit against the school that had employed her. Barrett's dissenting opinion in *Kanter* v. *Barr* (2019) employed an originalist analysis to arrive at an expansive reading of the Second Amendment's protection of the individual right to possess firearms as articulated in Scalia's opinion for the Supreme Court in *District of Columbia* v. *Heller* (2008). In *Doe* v. *Purdue University* (2019), she held for the court that a male student who had been accused of sexual violence could sue his former university for allegedly denying him due process and discriminating against him on the basis of sex in violation of Title IX. (Barrett determined merely that the student had presented a valid legal claim; she did not resolve the claim itself one way or the other.) For the court in *Yafai* v. *Pompeo* (2019), she favored a highly deferential review of a consular officer's rejection of a visa application based on that officer's determination that the immigrants had attempted to smuggle their children into the United States. And in dissent in *Cook County* v. *Wolf* (2020), she argued that the Trump administration's proposed redefinition of the term "public charge" in the Immigration and Nationality Act (1952), which would greatly reduce the number of immigrants granted admission to or legal permanent residency in the United States, was not unreasonable. Scholarly analyses of her time on the Seventh Circuit found her to be among the most conservative judges on the court.

Supreme Court nomination and confirmation

On September 18, 2020, Supreme Court Associate Justice Ruth Bader Ginsburg died. Just over a week later, Trump nominated Barrett to fill the vacancy. Barrett's nomination and confirmation sparked political controversy on both substantive and procedural grounds.

Barrett's nomination prompted politically polarized responses based on anticipated consequences for the substance of Supreme Court decisions: conservatives and Republicans welcomed such changes, but liberals and

Democrats opposed them. Barrett's appointment was expected to move the Court's decision-making in a more conservative direction. Via the 2016 Republican Party platform, Trump had committed himself to appointing Supreme Court justices who would overturn the Court's earlier decisions in *Roe* v. *Wade* (1973)—which established the (qualified) right to abortion—and *Obergefell* v. *Hodges* (2015)—which established the right of same-sex couples to marry—and to strike down the Affordable Care Act (2010). Before Ginsburg's death, the Court had been divided between five conservative Republican-appointed justices and four moderate-to-liberal Democratic-appointed justices (including Ginsburg). The Court regularly split along ideological lines in high-profile politically charged cases, but in some cases the moderate-liberal bloc would attract the support of Roberts, who wielded influence as the median justice—that justice whose vote is pivotal in breaking an otherwise 4–4 tie. With Barrett's replacement of Ginsburg, the conservative wing of the Court would gain a 6–3 advantage. Moreover, given the expectation that Barrett's voting behavior would be even more conservative than that of Roberts and the other Republican-appointed justices, Roberts would be displaced as the median justice by another justice (likely Kavanaugh) with a more consistently conservative voting record. Barrett's confirmation was thus expected to provide conservatives with a significantly stronger advantage in cases before the Court, and, consequently, liberals and Democrats opposed her elevation.

Public reaction to Barrett's nomination was further polarized over questions regarding the confirmation process itself. Republican senators were eager to confirm Barrett quickly, but Democrats complained about what they alleged was hypocrisy in Republicans' handling of the vacancy, as compared with their response to a similar vacancy just four years earlier. After Scalia died in February 2016, Obama nominated a moderate, Merrick Garland, as his replacement, but the Republican-controlled Senate declined even to hold hearings on Garland's nomination. In defense of their norm-breaking refusal, Republican senators argued that, because 2016 was a presidential election year, U.S. voters should have a say in how the seat would be filled—by electing the president who would nominate Scalia's replacement (it was eventually filled by Trump nominee Neil Gorsuch). Ginsburg also died during a presidential election year, and in fact she died much closer to election day than Scalia had. But in 2020, Senate Republicans proceeded

with Barrett's confirmation anyway, asserting that they were justified in doing so because, unlike in 2016, the same (Republican) party controlled both the White House and the Senate. Democrats complained that Republicans were being inconsistent and unprincipled and that the confirmation process was being improperly rushed. Some Democrats suggested that if their party were to win both the Senate and the presidency in the 2020 election, serious consideration should be given to expanding the Court, either to establish a liberal majority or to restore an approximate ideological balance between conservative and liberal justices.

During Barrett's confirmation hearings, Democratic senators asked Barrett about her views on several highly polarized issues, including abortion rights, same-sex marriage, and the Affordable Care Act. Consistently with the practice of many contemporary Supreme Court nominees—including Ginsburg—Barrett refused to disclose her likely rulings on matters that could potentially come before the Court. Democratic senators further questioned her regarding controversial statements made by Trump. Barrett refused to say whether the president could pardon himself, whether she believed in climate change, whether the government could separate immigrant children from their parents (as the Trump administration had done), whether voter intimidation is illegal, and whether Trump could refuse to accept the result of the upcoming presidential election (as he had threatened to do). Barrett insisted that she would come to the Supreme Court with "no agenda" and would act as no one's "pawn."

Female justices of the U.S. Supreme Court

The U.S. Supreme Court has gained six female associate justices in the following order: Sandra Day O'Connor, Ruth Bader Ginsburg,

Barrett was confirmed on October 26, 2020, eight days before the election. The 52–48 confirmation vote was narrow and almost completely along party lines: every Democratic senator (and the two independent senators who caucused with the Democrats) voted against her confirmation, along with Republican Senator Susan Collins of Maine, who explained her "no" vote as an expression of her opposition to the hurried effort to confirm Barrett before election day and not as a judgment of Barrett's fitness or

Sonia Sotomayor, Elena Kagan, Amy Coney Barrett, and Ketanji Brown Jackson.

qualifications to be a Supreme Court justice. Barrett was then sworn in as the 115th person, and the fifth woman, to serve as a Supreme Court justice.

Supreme Court opinions

Following her Senate confirmation, Barrett joined or wrote several conservative opinions and dissents, as both Republicans and Democrats had expected. From approximately her second year on the Court, however, she occasionally took independent positions that were moderate or even liberal, to the surprise of both parties and the disappointment of conservatives. As her tenure in the Court continued, she voted in favor of moderate or liberal majority decisions (often with Chief Justice Roberts) more frequently, leading many conservatives, particularly Trump supporters, to view her as a political traitor. Nevertheless, the vast majority of opinions or dissents she joined or wrote were conservative, and she was not comparable to the “swing voters” of earlier Courts.

Some of the major cases in which Barrett took noteworthy positions are listed below.

- In *United States Fish and Wildlife Service* v. *Sierra Club* (2021), her first majority opinion, Barrett ruled that the Freedom of Information Act (FOIA) of 1966 did not entitle the Sierra Club to access certain documents prepared by the United States Fish and Wildlife Service and the National Marine Fisheries Service, which the Environmental Protection Agency (EPA) had used to revise proposed regulations for mechanisms that cool industrial equipment with water transferred from large water bodies.
- In *New York State Rifle & Pistol Association, Inc.* v. *Bruen* (2022), Barrett joined a majority opinion by Justice Clarence Thomas, which held that a New York state law requiring residents who wish to carry concealed pistols or handguns outside their homes to first prove that they have special self-defense needs, violated the Fourteenth Amendment (1868) by preventing law-abiding citizens from exercising their rights under the Second Amendment (1791). She also filed a concurring opinion that agreed with Thomas’s judgment.
- In *Dobbs* v. *Jackson* (2022), Barrett joined a majority opinion written by Justice Samuel A. Alito, Jr., which overturned *Roe* v. *Wade* (1972) and *Planned Parenthood of*

Southeastern Pennsylvania v. *Casey* (1992), thereby reversing the Court's longstanding recognition of a constitutional right to abortion.

- In *Students for Fair Admissions, Inc.* v. *President and Fellows of Harvard College*, in combination with *Students for Fair Admissions, Inc.* v. *University of North Carolina* (2023), Barrett joined a majority opinion written by Chief Justice Roberts, who ruled that the affirmative action policies used in the admissions programs of both universities failed to meet restrictions established by the Court in the Bollinger decisions (2003), in which the Court held that consideration of race in the admissions programs of institutions of higher education is permissible only if it is "narrowly tailored" to serve a compelling state interest.
- In *Fischer* v. *United States* (2024), Barrett filed a dissenting opinion (joined by justices Elena Kagan and Sonia Sotomayor) in which she disputed the majority's finding that a rioter in the January 6 U.S. Capitol attack was wrongly convicted of violating a law preventing the obstruction of an official proceeding. Barrett disagreed with the majority's contention that the law applied only to evidence tampering, arguing that the majority had performed "textual backflips to find some way—any way—to narrow the reach" of the law's relevant subsection.
- In *Trump* v. *Anderson* (2024), Barrett filed an opinion concurring in part and concurring in the majority's judgment, which overturned a decision by the Colorado Supreme Court holding that former president Donald Trump was ineligible to appear on the state's 2024 Republican primary ballot under Section 3 of the Fourteenth Amendment. That section states in part that "No person shall hold any office…under the United States, or under any state, who, having previously taken an oath…to support the Constitution of the United States, shall have engaged in insurrection or rebellion against the same." Although Barrett agreed that the state supreme court's ruling should be overturned, she argued that the majority had unnecessarily assigned enforcement of Section 3 to the U.S. Congress. The case before the Court, she wrote, "does not require us to address the complicated question whether federal legislation is the exclusive vehicle through which Section 3 can be enforced."
- In *Trump* v. *United States* (2024), Barrett joined in part and filed an opinion concurring in part with the Court's majority, which held that former presidents are entitled to absolute immunity from criminal prosecution for acts that involved the exercise of their "core constitutional powers" and to "presumptive immunity" for all other official acts. In the latter case, a president may be prosecuted for an official act only if doing so would not intrude upon the authority and functions of the executive branch. In her concurring opinion, Barrett agreed that presidents should be immune from prosecution for acts involving their core constitutional powers but argued for a narrower standard for other official acts, holding that prosecution may proceed if the criminal law in question

clearly applies to the president's official act and the prosecution itself does not threaten the core constitutional powers of the president.

- In *Trump* v. *CASA, Inc., et al* (2025), Barrett wrote the Court's majority opinion, holding that "universal," or nationwide, injunctions "likely exceed the equitable authority that Congress has granted to federal courts." On that basis, she stayed three nationwide preliminary injunctions issued by federal district courts against enforcement of Trump's executive order ending birthright citizenship in the United States, "but only to the extent that the injunctions are broader than necessary to provide complete relief to each plaintiff with standing to sue." Barrett also emphasized that the Court's opinion does not address the question of whether Trump's executive order violates the citizenship clause of the Fourteenth Amendment of 1868 ("All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the state wherein they reside").

Barrett is married to Jesse Barrett, an attorney and fellow graduate of Notre Dame Law School. They have seven children.

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